# Submission to the Joint Standing Commission on Electoral Matters:

# Inquiry into and report on all aspects of the 2025 Federal Election and matters related thereto

Dr Kevin Bonham, 1 Nov 2025

## Introduction

This submission includes firstly some general comments about the nature of the 2025 election , secondly detailed comments relating to the Special Minister of State's reference regarding the size of parliament, term lengths and fixed terms, and thirdly commentary and recommendations on several individual issues arising from the election. I have had very little time to prepare a submission this year and there are other issues I could have canvassed but have lacked time to do so in this submission.

## Author background

I am a Tasmanian-based political, electoral and polling analyst with 37 years' experience as a scrutineer and analyst of preference distributions including Senate counts and other multi-member systems (especially Hare-Clark). I am also the author of a blog-form psephology, poll analysis and political comment website located at http://kevinbonham.blogspot.com.au/ and am frequently interviewed in the local and national presses regarding elections. I was an appointed scrutineer of the vote entry process for the 2016 Tasmanian Senate count, spending around 15 hours observing vote entry in order to successfully project the outcome.

My professional background has been mainly in an area of science unrelated to politics and elections, but my tertiary qualifications include a major in Political Science. About a third of my paid work now relates to electoral and polling analysis, in the form of commissions (eg from electoral authorities, candidates, media and parties to electoral court cases) or public donations. I am writing this submission in a private capacity and am not a member of, associated with or strongly supportive of, any political party.

# Recommendation

**In previous JSCEM submissions I have given lists of several recommendations. In this case I have chosen to give just a single recommendation to highlight the most glaring flaw in our federal democracy, which must urgently be fixed to prevent a Senator from ever being elected who is not the real choice of the voters.**

- That the Inclusive Gregory system for surplus distribution in Senate counts be replaced by the Weighted Inclusive Gregory system.

# 1. General Observations

## 1.1 House of Representatives

The House of Representatives election was, as the AEC has stated, the most complex House of Representatives count Australia has yet witnessed. Several seats featured unclear three-candidate-preferred scenarios requiring the AEC to perform 3CP counts to be sure of the winner of the count faster. One seat (Calwell) required a full distribution of preferences to determine the final two candidates. There was also one recount (Bradfield) and one partial recount (Goldstein).

The election was the most lopsided in two-party preferred terms since 1975. This was unexpected as polling had presaged a close contest for much of the term, and even during the campaign most polling suggested doubt over whether Labor would remain in majority.

The unexpected lopsidedness of the election may have contributed to an increase in sore loser behaviour on social media following the election. In my 2022 JSCEM submission I mentioned commonly seeing inaccurate claims about the government getting only "3 in 10 votes" at that election. Since the 2025 election the level of disinformation and support for introducing first past the post on X (formerly Twitter) has been several times worse than in 2022.

The most widespread myth I am seeing about this election is that Labor's feat in winning 62.67% of seats off 34.56% of the primary vote was a result of preferential voting. In fact the major causes of this disparity were the use of single-member electorates and Labor's primary vote being far more efficiently distributed than the Coalition's. Labor led on primary votes in 86 seats (including two where the combined total of two Coalition candidates exceeded theirs). I have covered how the disparity emerged in an article on my site.[1]

I repeat the comment I made about first past the post in 2022:

*First past the post is a rudimentary voting system rightly discarded from Australian federal elections over 100 years ago. It is a discriminatory system that throws away information and imposes the burden of having to decide whether or not to make a strategic vote on voters who prefer unpopular parties, but not on voters who prefer the most popular parties in a state. I regard all advocacy of first past the post voting for Australia as an unacceptable attack on the rights of minority voters to be treated equally by the electoral system, an attack that is contrary to Australian values of fairness and should be condemned by all parties.*

It should however be recognised that a very disproportionate result in the House of Representatives can give rise to more discussion about the merits and demerits of proportional representation. I am actually surprised not to have seen more of this in the wake of the result to this stage.

[1] https://kevinbonham.blogspot.com/2025/09/how-labor-won-94-seats-off-modest.html

### 1.2 Senate

The Senate election further discredited the already heavily discredited arguments against Senate reform in 2016, though in fairness to them few would have expected that a government would ever win an election as lopsidedly as this one was again. The election again showed that a popular "left" government can prevent the "right" from getting three-seat slates towards a blocking majority (the right only won two in two states). It also showed again that minor parties other than the Greens can be competitive, with One Nation winning three seats (two from behind) and this year's election recorded the lowest exhaust rate since the Senate voting system was reformed.

One Nation's wins in Western Australia and New South Wales were the most striking feature of the election. Both were by overtaking Labor using preferences. In Western Australia the primary cause was an improvement in preference flows to One Nation, with the Coalition's inclusion of One Nation on their how to vote cards increasing the margin but not directly causing the result. In New South Wales, the primary cause was Labor and the Greens both being short of quota so that "left" preferences were splitting two ways; even so One Nation would not have won without improved preference flows. There is some suggestion here that far from House of Representatives preferential voting being too confusing for voters, right-leaning voters are actually mastering the more difficult Senate voting system and using it better, aided by smaller ballot papers.

I have again compiled many statistics on the Senate election that may be of interest on my site.[2]

## 2. Size And Term Lengths Of Parliament

This section relates to the following reference:

*the composition of the Parliament as a whole, including: the length of the parliamentary term; the potential for fixed terms; and the number of elected representatives relative to the growth in population and the electorate.*

### 2.1 Number of elected representatives

The 2022 JSCEM inquiry sought comment on the number of elected representatives in the specific context of "one vote one value". I provided comment in that context and argued that an expansion of the parliament would have one vote one value benefits by reducing malapportionment in Tasmania and the Northern Territory. Also, as mentioned in my JSCEM appearance in 2023[3], expansion would enable more accurate rounding of the seat allowances for the less populous mainland states.

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[2] https://kevinbonham.blogspot.com/2025/05/2025-senate-notes-part-one.html and https://kevinbonham.blogspot.com/2025/06/2025-senate-notes-part-two.html

[3] https://www.aph.gov.au/Parliamentary_Business/Hansard/Hansard_Display?bid=committees/commjnt/26678/&sid=0002

While the terms of reference specifically referred to one vote one value I also indicated that I supported expansion of the House of Representatives and concomitant expansion of the state Senate slates anyway. Here I referred to the lack of any expansion since 1984, meaning that House of Representatives electorates service nearly twice as many electors as they did after that expansion, weakening the connections between MPs and electors and the opportunities for a given person with an issue to have that issue effectively known by and pursued by that MP.

The 2025 election has added some further evidence relevant to the debate. The election did see more success than normal in the current Senate configuration for minor right parties, with One Nation winning three seats, two from behind Labor by superior preference flows. In the House of Representatives election, however, despite an increase of 1.9% in the combined non-majors vote, the crossbench shrank from 16 seats to 13. Some independents narrowly missed out in complex three-cornered contests.

While the House of Representatives system is by no means proportional I believe it would be desirable to see more parties and more types of independents have some kind of presence in the Reps, and also for the Greens to have a less precarious presence. The size (in population terms and in some cases physical terms) of Reps electorates is not helping crossbenchers with the task of winning them. I believe also that smaller electorates would provide for more distinctive local communities that major party MPs would represent better.

Various arguments have been advanced suggesting that an expansion would benefit the government in the House of Representatives and an expansion would be a partisan stitch-up. All the arguments I have seen on this point are false and I have refuted them in an article on my site.[4] In particular, claims that Labor will be assisted by redistributing growth corridor seats are false because almost all of them have recently been redistributed, outside Queensland where they are mostly occupied by the Liberal National Party. If anything, non-major party candidates and the Coalition will benefit from electorates that are less sprawling and that are less likely to be occupied by Labor MPs, but the benefit would be slight.

Concerning the impacts in the Senate, my previous submission covered expansion to 14 and 16 Senators per state. Below I note again the simulated results for 2022 under the proposed expansions – disregarding defections - and add the simulated results for 2025.

**<u>14 Senators: (Expansion by one-sixth)</u>**

**2022 half-Senate plus territories:** Coalition 19 Labor 18 Green 6 ON 1 JLN 1 Pocock 1

**2022-25 Senate:** (majority 45): Coalition 38 Labor 31 Green 12 ON 4 JLN 2 Pocock 1

**2025 half-Senate plus territories:** Coalition 15 Labor 19 Green 6 ON 4 JLN 1 Pocock 1

**2025-28 Senate:** (majority 45): Coalition 33 Labor 35 Green 12 ON 5 JLN 2 Pocock 1

Assuming no defections, Labor and the Greens would have three seats more than half the Senate, which would also currently be the case on the same proviso. So on current numbers there is no left-right balance difference between this system and the current system, but I did

[4] https://kevinbonham.blogspot.com/2025/10/yes-federal-parliament-should-be.html

note in my 2022 submission that the modelled numbers for the 2019-22 term were unfavourable to the "right". The reason is that when the "left" does very well, as has occurred in 2022 and 2025, it starts to win 4-2 slates in 6-seat elections that become 4-3 slates in 7-seat elections. I therefore still think that having 14 Senators per state could benefit the "left" in more balanced elections. This could however change should One Nation's vote continue growing.

**16 Senators: (Expansion by one-third)**

**2022 half-Senate plus territories:** Coalition 19 Labor 19 Green 6 JLN 1 ON 4 UAP 1 Legalise Cannabis 1 Pocock 1

**2022-25 Senate (majority 51):** Coalition 41 Labor 36 Green 12 JLN 2 ON 6 UAP 1 Legalise Cannabis 1 Pocock 1

**2025 half-Senate plus territories:** Coalition 17 Labor 21 Green 6 ON 6 JLN 1 Pocock 1

**2025-28 Senate (majority 51):** Coalition 35 Labor 38 Green 12 ON 10 JLN 2 UAP 1 Legalise Cannabis 1 Pocock 1

This model is currently very favourable to One Nation who would hold 10% of the Senate from two consecutive elections at which they averaged 5% of the vote. The "left" only gains five of the 12 extra Senators for the second consecutive election, and one of the "left" seats goes to Legalise Cannabis, so Labor and the Greens only have half of the seats combined. What is notable here is that there are some cases where the "left" wins a 4-2 split in six-seat elections that instead of becoming 5-3 splits in eight-seat elections (as would be expected) instead become 4-4s. This is true of both WA2022 and Victoria 2025.

I should point out that an even higher representation of One Nation for their vote shares is capable of occurring in the current system if their vote increases slightly; 2-2-1-1 could become a common result in most states in the current Senate at a slightly higher One Nation vote than currently occurs. This is especially so as One Nation is the most prominent of several minor right parties whose preferences now tend to flow strongly to it.

Overall in the simulation with 16 Senators per state the expected left-right vote in the Senate would be about 53-47 as a combined result of two elections in which the average Reps 2PP was 53.68 to Labor. This partly reflects that once One Nation have enough of a quota to be in the running to turn preferences into seats they seem to be better at doing it in the Senate than the Coalition currently are in the Reps.

I am personally agnostic about the relative benefits of the two possible expansions but I think there is a very strong case for some level of expansion in this term.

There has been no change in my views regarding Territory Senators since the previous cycle. While I think there are some sound arguments for increasing the number of Territory Senators to four per territory (with three year all in all out terms as presently) the fact that this increases the malapportionment of the Senate means that if this is to occur it should only occur based on valid arguments, not on invalid ones of the form "but Tasmania has …". The valid arguments concern diversity of representation and improving the electoral experience for Territory voters.

I was displeased with some aspects of the handling of the Territory Senators matter in the 2022 election JSCEM report.[5]

It is worth noting that the Liberal Party's performance in the 2025 ACT Senate election was so weak that the party would have only narrowly won a seat at a four-Senator election on the same vote share, so even four Senators per Territory is not necessarily enough to be certain the ACT will have Liberal representation.

I was asked a question on notice about expansions in the State parliaments. In recent decades:

* NSW now has fewer lower house seats (93) than in 1971 (96) having briefly been as high as 109.

* Victoria expanded from 73 to 81 in 1976 and to 88 in 1985.

* Queensland expanded from 82 to 89 in 1986 and to 93 in 2017.

* Western Australia had 51 seats in 1974 and now has 59 after three minor expansions.

* South Australia expanded to 47 seats in 1970 and has not expanded since.

* Tasmania reduced from 35 to 25 in 1998 and returned to 35 in 2024.

Overall there has only been a minor expanding trend in State lower houses over the last 55 years. However I would argue that many of the states were overrepresented to begin with whereas the federal parliament was not.

**2.2 Fixed terms**

I do not support fixed terms in any form.

The primary arguments advanced for fixed terms are that they enable certainty about when elections will be held and also deprive governments of the ability to choose the timing of the election that is most politically convenient.

However the "certainty" argument only applies if fixed means fixed and the election will definitely be held on a certain date barring rare exceptions (government collapses and no alternative can be appointed, national emergency).

Election dates are not "fixed" in terms of reliably knowing the election will be on a certain date if the fixing can be undone either by Parliament having the ability to approve an election or by the legislation being able to be set aside by simple majority. (Or indeed if the legislation does not bind the Prime Minister's ability to request an election early anyway). The UK's experience with the failed *Fixed Term Parliaments Act 2011* demonstrates this. Following the 2015 general election, general elections were held in 2017 and 2019 despite the UK having five year terms.

Fixed-means-fixed terms, which would require an amendment to the Constitution, have other hazards. In Tasmania, elections have been called early by Governments of the day in 2021 and 2024 after defections altered the balance of Parliament to one the voters did not vote for. While this is a far greater hazard in Tasmania's proportional system, it could in theory occur

[5] https://kevinbonham.blogspot.com/2023/11/jscems-strange-case-for-extra-territory.html

in federal parliament in the future. My view is that the Prime Minister of the day – provided he/she maintains the confidence of the House - should have the ability to seek a fresh mandate in such situations rather than having to continue in a parliament with no mandate.

The matter of how double dissolutions interact with fixed terms has also been not much considered in the public debate. If the double dissolution power is retained then PMs seeking an early election may be able to do so through the double dissolution pathway.

Overall while the unpredictability of federal election dates is a serious issue for those working on elections (including me) I think the hazards of fixing terms effectively are greater. I also think that voters in general see through elections called needlessly early for partisan advantage and have tended to punish governments (at state level at least) that have gone to elections needlessly early. Furthermore, I take the view that if a government is able to call an election at a time when there is such a strong case for electing it that it benefits even despite the risks of causing an early election, then that government deserves to benefit. I think for instance that the Menzies government should have been able to call the 1955 election to ask for greater numbers in view of the split in the Opposition.

Early federal elections are less common recently than they were. From 1998 to 2025 every election was held three calendar years after the last, the longest such streak ever. From 2001 on, only the 2016 election in this time was significantly early (and only by a few months), and that was a necessary early election to effect Senate reform without payback from crossbenchers elected by Group Ticket Voting in 2013. Given that governments are lately tending not to call significantly early elections anyway I think that the problems of unfixed terms are overstated.

A further minor point is that while the current Prime Minister obviously dislikes having to deal with media election date speculation, the flexibility of election dates gives Prime Ministers opportunities to make choices that tell the electorate more about them, for better or for worse. An example this year was the well-received decision not to call an April election in view of Cyclone Alfred.

**2.3 Longer terms**

I sympathise with the idea that three-year terms are on the short side for the House of Representatives because much of the term is spent on an election footing, encouraging short-term goalsetting, and because of the financial costs of election cycles, but I find it difficult to find an adequate way to increase terms to four years within the confines of our system. My view on this is that while three-year terms are suboptimal in isolation, they are not bad enough to render the system broken, and I am not at this stage aware of a fix that does not create greater issues.

I am strongly opposed to extending Senate terms to eight years. The Senate has enough problems with defections as it is, especially as it is the nearest thing to a proportional chamber. Eight years is a very long time in these days when politics is not a career for life and Senators could defect from their parties early in their term and be in the Senate for most of eight years before they were accountable to their state or territory's voters. Eight years is so long that there would not be effective accountability.

Increasing the term length of the House of Representatives to four years while reducing the Senate to four years would require every Senate election to be of the full Senate, or else mid-term standalone half-Senate elections. In the former case, the smaller quota would make Senate representation more diverse at party level but could make the Senate less manageable, especially if there is an expansion in the number of Senators. It would also affect the dynamic between the houses. Assuming the double dissolution (DD) provision is retained as a method of resolving House/Senate deadlocks, Senators would have less time lost from the remainder of their terms on average than at present. Governments would no longer have to consider that a DD would increase the number of crossbenchers. The Greens who fare well under the current system would have no reason to fear a DD where they might lose seats. My suspicion is that if all Senate elections were all-in all-out the use of elections to resolve deadlocks – if the power was retained – would increase.

(I estimate the 2025 half-Senate election if it had been a full-Senate election as Labor 31 seats Coalition 24 Greens 11 One Nation 6 with one each for Legalise Cannabis, Jacqui Lambie Network, Gerard Rennick People First and David Pocock. In my estimates Legalise Cannabis had two very close losses to Labor so might have done better in reality.)

Any solution involving standalone half-Senate elections has the drawback that incumbent governments tend to do badly at such elections (this not only applies to four-year terms with half-Senate elections every two years but also to keeping six year terms).

# 3. Other Matters

### 3.1 AI and Online Misinformation

Based on my experience on X (formerly Twitter) there is a serious problem with AI "large language models", that many users naively regard as reliable sources, making false claims about election results and voting systems. Some users appear to be addicted to conversing with Grok and some even seem to use it to write most of their posts.

Of particular concern, I have at least four times (the number increased while I was writing this submission) seen X's native AI account Grok claim that your vote under preferential voting can reach the candidate you put last. I have also seen it:

* grossly misstate election results (crediting Labor with as few as 80 seats and as much as 58% 2PP from the 2025 election)

* falsely claim that the 1919 election was first past the post

* falsely claim voters can be fined for informal voting

* claim that expert election models have been projecting certain results off polling when no such models existed

* misrepresent post-counting processes including those leading up to the Goldstein partial recount

* hopelessly fail to compile a correct list of seats where various parties led on primary votes (including saying independents led in 29 seats, giving a list of seats that totalled 169 seats,

inventing seats like "Mack" that don't exist and saying three different candidates led on primaries in Hinkler)

* and make constant false claims about polling numbers

Errors regarding election results and polls are one thing - in my view there is a very serious issue with the rise of AI programs that cannot be trusted not to mislead electors in relation to the casting of their vote. Unless these AI programs can be modified so they stop doing this, I am in favour of completely banning them from operating in Australia at least during election periods.

In most cases when corrected on its errors Grok thanks me for the correction and accepts it; sometimes it digs in. However despite often saying it will do better in future it appears not to learn and very often makes the same error again.

### 3.2 Informal Voting

This election continued to see a disappointingly high rate of informal voting in the House of Representatives. I did hear that the AEC would be restoring the informal ballot survey in this cycle and I hope this will be the case. In particular there is a critical need for by-electorate statistics on the rate of informals caused by confusion with the Senate above the line process (voter votes 1-6 and stops). I believe there should be a savings provision to count such votes.

It was especially notable that there were huge informal rates in Werriwa (17.26%) and Watson (17.01%), two seats that are always near the top of the informal voting list. The reasons for the remarkably high informal votes in these and other similar seats need to be examined closely to see to what extent informal voting in these seats was accidental vs deliberate.

### 3.3 The AEC's Performance

Overall I found the AEC's performance in delivering a very complex election to be outstanding. The AEC was proactive in conducting three-candidate preferred counts to resolve unclear seats and did a truly excellent job of briefing media including specialist electoral media through online information sessions. The AEC also published a progressive distribution in the seat of Calwell, something that I hope will become standard practice for future counts that cannot be resolved by a 2CP or 3CP count.

One exception to this was the baffling decision to designate the Liberals as the second party for the notional 2CP count against the Greens in the seat of Melbourne, instead of designating Labor. The seat was obviously being contested between the Greens and Labor with the Liberals having no hope of winning and conducting a useless Greens vs Liberal 2CP on the night obscured the result of the seat for days until booths started to be realigned. Had the correct pairing been chosen it is likely that the result would have been known on the night.

### 3.4 Inclusive Gregory Distortion

The use of the outmoded Inclusive Gregory system for Senate surplus distributions again caused distortions, particularly in the NSW Senate count (see Antony Green's excellent article on this[6]. It is undemocratic and absurd that in our otherwise outstanding Senate

[6] https://antonygreen.com.au/time-to-change-the-electoral-act-to-fix-faults-in-senate-counting/

system this bug that is a leftover from the days of paper counting continues to distort the values of votes, even causing some votes that have already used nearly all their value electing candidates to increase in value when processed through a surplus that should cause their value to decrease. It would be nice if the parliament could be proactive and ensure this is fixed before it causes a Senator to win who under a fair surplus distribution system would not have done so.